

EU Law — the instruments and where they came up

Legal instruments mentioned in the Introduction to EU Law lectures (IREWI), arranged by instrument and, within it, BY ARTICLE: first the official text from EUR-Lex, then every slide where the article came up and the sentence from the course. Mind the TEU × TFEU pair: in an open question it shows at once who confuses them.

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1. Treaty on European Union (TEU)

Article texts: EUR-Lex, consolidated version (12016M/TXT)

Art. 1

By this Treaty, the HIGH CONTRACTING PARTIES establish among themselves a EUROPEAN UNION, hereinafter called 'the Union', on which the Member States confer competences to attain objectives they have in common. This Treaty marks a new stage in the process of creating an ever closer union among the peoples of Europe, in which decisions are taken as openly as possible and as closely as possible to the citizen. The Union shall be founded on the present Treaty and on the Treaty on the Functioning of the European Union (hereinafter referred to as 'the Treaties'). Those two Treaties shall have the same legal value. The Union shall replace and succeed the European Community.

EU04 · slide 13 · Conferral in the Treaty text

Article 1 TEU: the member states CONFER competences on the Union to attain objectives they have in common.

Art. 2

The Union is founded on the values of respect for human dignity, freedom, democracy, equality, the rule of law and respect for human rights, including the rights of persons belonging to minorities. These values are common to the Member States in a society in which pluralism, non-discrimination, tolerance, justice, solidarity and equality between women and men prevail.

EU05 · slide 14 · Article 49 TEU: who may join

Two sets of conditions: the applicant must respect and promote the values of Article 2 TEU, and must meet the Copenhagen criteria, to which Article 49(1) fourth subparagraph refers.

EU05 · slide 14 · Article 49 TEU: who may join

The applicant must be a European state that respects and promotes the values of Article 2 TEU, and it must meet the conditions of eligibility agreed by the European Council — the Copenhagen criteria.

Art. 4(1)

1. In accordance with Article 5, competences not conferred upon the Union in the Treaties remain with the Member States.

EU04 · slide 13 · Conferral in the Treaty text

Article 4(1) TEU: competences not conferred remain with the member states.

EU04 · slide 13 · Conferral in the Treaty text

Under the principle of conferral, competences not conferred upon the Union in the Treaties remain with the member states (Art 4(1) TEU); there is no general Union competence.

Art. 4(2)

2. The Union shall respect the equality of Member States before the Treaties as well as their national identities, inherent in their fundamental structures, political and constitutional, inclusive of regional and local self-government. It shall respect their essential State functions, including ensuring the territorial integrity of the State, maintaining law and order and safeguarding national security. In particular, national security remains the sole responsibility of each Member State.

EU06 · slide 12 · The three concepts and how they turn into each other

Primacy says EU law prevails over conflicting national law; the immediate objection is that no state accepts being overruled in ITS most fundamental commitments, so each keeps an INTEGRATION-PROOF CORE — a core of the constitution which integration may not touch (in Germany the eternity clause of Article 79(3) Basic Law, in the Treaties echoed by the national identity clause of Article 4(2) TEU).

EU06 · slide 12 · The three concepts and how they turn into each other

The part of a national constitution withdrawn from European integration, which the member state's court holds EU law cannot override — in Germany the ETERNITY CLAUSE of Article 79(3) Basic Law; in the Treaties its counterpart is the NATIONAL IDENTITY clause of Article 4(2) TEU.

Art. 4(3)

3. Pursuant to the principle of sincere cooperation, the Union and the Member States shall, in full mutual respect, assist each other in carrying out tasks which flow from the Treaties. The Member States shall take any appropriate measure, general or particular, to ensure fulfilment of the obligations arising out of the Treaties or resulting from the acts of the institutions of the Union. The Member States shall facilitate the achievement of the Union's tasks and refrain from any measure which could jeopardise the attainment of the Union's objectives.

EU08 · slide 10 · Workaround 2: indirect effect

Two bases: Article 4(3) TEU, under which member states take any appropriate measure to ensure fulfilment of obligations arising from the Treaties or the acts of the institutions, and effet utile.

EU08 · slide 10 · Workaround 2: indirect effect

Article 4(3) TEU — the duty of sincere cooperation to take any appropriate measure to ensure fulfilment of EU obligations — together with effet utile (Von Colson, 14/83).

EU08 · slide 39 · The two principles as minimum standards

Equivalence and effectiveness are minimum quality standards on national procedure, grounded in the principle of sincere cooperation and loyalty in Article 4(3) TEU and in the right to an effective remedy in Article 19(1) TEU.

EU08 · slide 42 · What follows from a breach

A three-step remedy: first interpret the national rule in conformity with EU law; if that is impossible, disapply it in line with primacy; and — a question mark on the slide — possibly base a remedy directly on Article 4(3) TEU.

EU08 · slide 43 · Res judicata: Kühne & Heitz

C-453/00: the duty of cooperation in Article 4(3) TEU obliges an administrative body to REVIEW a final administrative decision, on application, to take account of an interpretation the Court has given in the meantime — but only where four conditions are met: national law gives it the power to reopen; the decision became final through a judgment of a court ruling at final instance; that judgment rested on a misinterpretation of EU law adopted WITHOUT a preliminary reference; and the person complained to the authority immediately after learning of the Court's decision.

EU08 · slide 53 · The legal basis

A GENERAL PRINCIPLE of EU law, derived inter alia from Articles 4(3) and 19(1) TEU and from effet utile.

EU08 · slide 53 · The legal basis

A general principle of EU law derived from Arts 4(3) and 19(1) TEU and effet utile — NOT Article 340 TFEU, which concerns the liability of the Union, and not national law, which only supplies the procedure.

Art. 5(3)

3. Under the principle of subsidiarity, in areas which do not fall within its exclusive competence, the Union shall act only if and in so far as the objectives of the proposed action cannot be sufficiently achieved by the Member States, either at central level or at regional and local level, but can rather, by reason of the scale or effects of the proposed action, be better achieved at Union level. The institutions of the Union shall apply the principle of subsidiarity as laid down in the Protocol on the application of the principles of subsidiarity and proportionality. National Parliaments ensure compliance with the principle of subsidiarity in accordance with the procedure set out in that Protocol.

EU04 · slide 22 · Exercising competence: two further tests

SUBSIDIARITY, Article 5(3) TEU, applies ONLY where the competence is shared — the slide says so in red.

EU04 · slide 22 · Exercising competence: two further tests

Subsidiarity (Art 5(3) TEU) applies only where competence is shared.

EU04 · slide 24 · The subsidiarity test and its policing

Positive condition: by reason of scale or effects they can be better achieved at Union level (Art 5(3) TEU).

Art. 5(4)

4. Under the principle of proportionality, the content and form of Union action shall not exceed what is necessary to achieve the objectives of the Treaties. The institutions of the Union shall apply the principle of proportionality as laid down in the Protocol on the application of the principles of subsidiarity and proportionality.

EU04 · slide 22 · Exercising competence: two further tests

PROPORTIONALITY, Article 5(4) TEU, applies to all Union action.

EU04 · slide 22 · Exercising competence: two further tests

Proportionality (Art 5(4) TEU) applies to all Union action.

Art. 6(2)

2. The Union shall accede to the European Convention for the Protection of Human Rights and Fundamental Freedoms. Such accession shall not affect the Union's competences as defined in the Treaties.

EU10 · slide 24 · Can the EU accede to the ECHR?

Article 6(2) TEU makes accession a political objective — and the Court of Justice has rejected it TWICE, in Opinion 2/94 and Opinion 2/13.

EU10 · slide 24 · Can the EU accede to the ECHR?

To protect the autonomy of EU law: accession would subject EU primary law and the Court's own case law to the ECHR and the Strasbourg Court (Opinions 2/94 and 2/13), even though Article 6(2) TEU makes accession an objective.

Art. 6(3)

3. Fundamental rights, as guaranteed by the European Convention for the Protection of Human Rights and Fundamental Freedoms and as they result from the constitutional traditions common to the Member States, shall constitute general principles of the Union's law.

EU10 · slide 26 · Two bases today

GENERAL PRINCIPLES of Union law under Article 6(3) TEU, drawn from the ECHR and the constitutional traditions of the member states.

EU10 · slide 26 · Two bases today

The Charter of Fundamental Rights, which is primary law since Lisbon, and the general principles of Union law under Article 6(3) TEU, drawn from the ECHR and the member states' common constitutional traditions.

Art. 7

1. On a reasoned proposal by one third of the Member States, by the European Parliament or by the European Commission, the Council, acting by a majority of four fifths of its members after obtaining the consent of the European Parliament, may determine that there is a clear risk of a serious breach by a Member State of the values referred to in Article 2. Before making such a determination, the Council shall hear the Member State in question and may address recommendations to it, acting in accordance with the same procedure. The Council shall regularly verify that the grounds on which such a determination was made continue to apply. 2. The European Council, acting by unanimity on a proposal by one third of the Member States or by the Commission and after obtaining the consent of the European Parliament, may determine the existence of a serious and persistent breach by a Member State of the values referred to in Article 2, after inviting the Member State in question to submit its observations. 3. Where a determination under paragraph 2 has been made, the Council, acting by a qualified majority, may decide to suspend certain of the rights deriving from the application of the Treaties to the Member State in question, including the voting rights of the representative of the government of that Member State in the Council. In doing so, the Council shall take into account the possible

consequences of such a suspension on the rights and obligations of natural and legal persons. The o [...]

EU09 · slide 12 · The other procedures

Damages against the Union (Art 268), actions on arbitration clauses in Union contracts (Art 272) and between member states (Art 273), staff cases (Art 270 with 256(1), 257), opinions on the compatibility of intended international agreements (Art 218(11)), sanction proceedings under Article 7 TEU (Art 269), and miscellaneous matters (Art 271).

Art. 13(1)

1. The Union shall have an institutional framework which shall aim to promote its values, advance its objectives, serve its interests, those of its citizens and those of the Member States, and ensure the consistency, effectiveness and continuity of its policies and actions. The Union's institutions shall be: — the European Parliament, — the European Council, — the Council, — the European Commission (hereinafter referred to as 'the Commission'), — the Court of Justice of the European Union, — the European Central Bank, — the Court of Auditors.

EU01 · slide 10 · The whole course in one diagram

Left column: the institutions under Article 13(1) TEU — European Council, Commission, Council of the EU, Parliament, Court of Justice with its five procedures (preliminary references, annulment, failure to act, infringement, others), other institutions and non-institutional actors.

EU01 · slide 10 · The whole course in one diagram

Name the five institutions of Article 13(1) TEU that this course covers, plus the Court's five procedures.

EU02 · slide 5 · The seven institutions of Article 13(1) TEU

List the seven institutions of the Union under Article 13(1) TEU.

Art. 13(4)

4. The European Parliament, the Council and the Commission shall be assisted by an Economic and Social Committee and a Committee of the Regions acting in an advisory capacity.

EU02 · slide 6 · The advisory bodies

Article 13(4) TEU adds the Economic and Social Committee and the Committee of the Regions.

EU02 · slide 6 · The advisory bodies

They are supporting and advisory bodies under Article 13(4) TEU.

Art. 14

1. The European Parliament shall, jointly with the Council, exercise legislative and budgetary functions. It shall exercise functions of political control and consultation as laid down in the Treaties. It shall elect the President of the Commission.
2. The European Parliament shall be composed of representatives of the Union's citizens. They shall not exceed seven hundred and fifty in number, plus the President. Representation of citizens shall be progressively proportional, with a minimum threshold of six members per Member State. No Member State shall be allocated more than ninety-six seats. The European Council shall adopt by unanimity, on the initiative of the European Parliament and with its consent, a decision establishing the composition of the European Parliament, respecting the principles referred to in the first subparagraph.
3. The members of the European Parliament shall be elected for a term of five years by direct universal suffrage in a free and secret ballot.
4. The European Parliament shall elect its President and its officers from among its members.

EU03 · slide 27 · Article 14 TEU

What three functions does Article 14 TEU give the European Parliament?

Art. 15

1. The European Council shall provide the Union with the necessary impetus for its development and shall define the general political directions and priorities thereof. It shall not exercise legislative functions.
2. The European Council shall consist of the Heads of State or Government of the Member States, together with its President and the President of the Commission. The High Representative of the Union for Foreign Affairs and Security Policy shall take part in its work.
3. The European Council shall meet twice every six months, convened by its President. When the agenda so requires, the members of the European Council may decide each to be assisted by a minister and, in the case of the President of the Commission, by a member of the Commission. When the situation so requires, the President shall convene a special meeting of the European Council.
4. Except where the Treaties provide otherwise, decisions of the European Council shall be taken by consensus.
5. The European Council shall elect its President, by a qualified majority, for a term of two and a half years, renewable once. In the event of an impediment or serious misconduct, the European Council can end the President's term of office in accordance with the same procedure.
6. The President of the European Council: (a) shall chair it and drive forward its work; (b) shall ensure the preparation and continuity of the work of the European Council in cooperation with the President of the Commission, and on the basis of [...]

EU02 · slide 15 · Article 15 TEU

Article 15 TEU expressly provides that it shall not exercise legislative functions.

EU03 · slide 14 · Article 16 TEU

The European Council exercises no legislative functions (Art 15 TEU).

Art. 16

1. The Council shall, jointly with the European Parliament, exercise legislative and budgetary functions. It shall carry out policy-making and coordinating functions as laid down in the Treaties. 2. The Council shall consist of a representative of each Member State at ministerial level, who may commit the government of the Member State in question and cast its vote. 3. The Council shall act by a qualified majority except where the Treaties provide otherwise. 4. As from 1 November 2014, a qualified majority shall be defined as at least 55 % of the members of the Council, comprising at least fifteen of them and representing Member States comprising at least 65 % of the population of the Union. A blocking minority must include at least four Council members, failing which the qualified majority shall be deemed attained. The other arrangements governing the qualified majority are laid down in Article 238(2) of the Treaty on the Functioning of the European Union. 5. The transitional provisions relating to the definition of the qualified majority which shall be applicable until 31 October 2014 and those which shall be applicable from 1 November 2014 to 31 March 2017 are laid down in the Protocol on transitional provisions. 6. The Council shall meet in different configurations, the list of which shall be adopted in accordance with Article 236 of the Treaty on the Functioning of the European Union. The General Affairs Council shall ensure consistency in the work of the different Council [...]

EU03 · slide 14 · Article 16 TEU

The Council of the EU legislates jointly with Parliament (Art 16 TEU).

Art. 16(3)

(text at Art. 16 above)

EU03 · slide 17 · The four voting thresholds

QUALIFIED MAJORITY is the standard, used for example in the ordinary legislative procedure: 55 per cent of the member states — 15 of 27 — representing 65 per cent of the EU population (Article 16(3) and (4) TEU).

EU03 · slide 17 · The four voting thresholds

State the qualified majority threshold in the Council, with the Treaty basis. 55 per cent of the member states — 15 of 27 — representing at least 65 per cent of the population of the Union (Art 16(3), (4) TEU).

Art. 17(2)

2. Union legislative acts may only be adopted on the basis of a Commission proposal, except where the Treaties provide otherwise. Other acts shall be adopted on the basis of a Commission proposal where the Treaties so provide.

EU02 · slide 35 · Article 17 TEU

The Commission: legislative acts may only be adopted on the basis of a Commission proposal (Art 17(2) TEU) — the monopoly of initiative — except where the Treaties provide otherwise.

Art. 19(1)

1. The Court of Justice of the European Union shall include the Court of Justice, the General Court and specialised courts. It shall ensure that in the interpretation and application of the Treaties the law is observed. Member States shall provide remedies sufficient to ensure effective legal protection in the fields covered by Union law.

EU08 · slide 29 · Decentralised enforcement as the rule

Member states are generally responsible for enforcing and implementing EU acts — through their AUTHORITIES under Article 291(1) TFEU and through their COURTS under Article 19(1) second subparagraph TEU.

EU08 · slide 29 · Decentralised enforcement as the rule

The member states as a rule — their authorities under Article 291(1) TFEU and their courts under Article 19(1) second subparagraph TEU.

EU08 · slide 39 · The two principles as minimum standards

Equivalence and effectiveness are minimum quality standards on national procedure, grounded in the principle of sincere cooperation and loyalty in Article 4(3) TEU and in the right to an effective remedy in Article 19(1) TEU.

EU09 · slide 6 · Article 19 TEU

What obligation does Article 19(1) second subparagraph TEU place on member states?

Art. 24

1. The Union's competence in matters of common foreign and security policy shall cover all areas of foreign policy and all questions relating to the Union's security, including the progressive framing of a common defence policy that might lead to a common defence. The common foreign and security policy is subject to specific rules and procedures. It shall be defined and implemented by the European Council and the Council acting unanimously, except where the Treaties provide otherwise. The adoption of legislative acts shall be excluded. The common foreign and security policy shall be

put into effect by the High Representative of the Union for Foreign Affairs and Security Policy and by Member States, in accordance with the Treaties. The specific role of the European Parliament and of the Commission in this area is defined by the Treaties. The Court of Justice of the European Union shall not have jurisdiction with respect to these provisions, with the exception of its jurisdiction to monitor compliance with Article 40 of this Treaty and to review the legality of certain decisions as provided for by the second paragraph of Article 275 of the Treaty on the Functioning of the European Union. 2. Within the framework of the principles and objectives of its external action, the Union shall conduct, define and implement a common foreign and security policy, based on the development of mutual political solidarity among Member States, the identification of questions of general interest a [...]

EU05 · slide 36 · Implementing acts (Art 291 TFEU)

Only where UNIFORM conditions for implementation are needed — taxation, agriculture, the internal market, health and food safety — does the Commission, or exceptionally the Council under Articles 24 and 25 TEU, adopt an implementing act.

EU05 · slide 36 · Implementing acts (Art 291 TFEU)

The Commission adopts an implementing act only where uniform conditions for implementation are needed (Art 291 TFEU) — exceptionally the Council under Arts 24-25 TEU.

Art. 31(1)

1. Decisions under this Chapter shall be taken by the European Council and the Council acting unanimously, except where this Chapter provides otherwise. The adoption of legislative acts shall be excluded. When abstaining in a vote, any member of the Council may qualify its abstention by making a formal declaration under the present subparagraph. In that case, it shall not be obliged to apply the decision, but shall accept that the decision commits the Union. In a spirit of mutual solidarity, the Member State concerned shall refrain from any action likely to conflict with or impede Union action based on that decision and the other Member States shall respect its position. If the members of the Council qualifying their abstention in this way represent at least one third of the Member States comprising at least one third of the population of the Union, the decision shall not be adopted.

EU03 · slide 17 · The four voting thresholds

And UNANIMITY, for example in the common foreign and security policy (Article 31(1) TEU).

EU03 · slide 17 · The four voting thresholds

Unanimity (Art 31(1) TEU) — the most sovereignty-sensitive field keeps the veto.

Art. 31(3)

3. The European Council may unanimously adopt a decision stipulating that the Council shall act by a qualified majority in cases other than those referred to in paragraph

EU03 · slide 18 · Three special mechanisms

Article 48(7) TEU or Article 31(3) TEU — the Treaties themselves authorise the switch.

Art. 48

1. The Treaties may be amended in accordance with an ordinary revision procedure. They may also be amended in accordance with simplified revision procedures. 2. The Government of any Member State, the European Parliament or the Commission may submit to the Council proposals for the amendment of the Treaties. These proposals may, inter alia, serve either to increase or to reduce the competences conferred on the Union in the Treaties. These proposals shall be submitted to the European Council by the Council and the national Parliaments shall be notified. 3. If the European Council, after consulting the European Parliament and the Commission, adopts by a simple majority a decision in favour of examining the proposed amendments, the President of the European Council shall convene a Convention composed of representatives of the national Parliaments, of the Heads of State or Government of the Member States, of the European Parliament and of the Commission. The European Central Bank shall also be consulted in the case of institutional changes in the monetary area. The Convention shall examine the proposals for amendments and shall adopt by consensus a recommendation to a conference of representatives of the governments of the Member States as provided for in paragraph 4. The European Council may decide by a simple majority, after obtaining the consent of the European Parliament, not to convene a Convention should this not be justified by the extent of the proposed amendments. In the [...]

EU05 · slide 12 · How primary law is changed

Three routes under Article 48 TEU.

Art. 48(1)

1. The Treaties may be amended in accordance with an ordinary revision procedure. They may also be amended in accordance with simplified revision procedures.

EU05 · slide 12 · How primary law is changed

The ordinary revision procedure under Art 48(1)-(5) TEU, with or without a Convention; the simplified procedures under Art 48(6) for Part III TFEU and Art 48(7) passerelles; plus accession and withdrawal under Arts 49 and 50

TEU.

Art. 48(7)

7. Where the Treaty on the Functioning of the European Union or Title V of this Treaty provides for the Council to act by unanimity in a given area or case, the European Council may adopt a decision authorising the Council to act by a qualified majority in that area or in that case. This subparagraph shall not apply to decisions with military implications or those in the area of defence. Where the Treaty on the Functioning of the European Union provides for legislative acts to be adopted by the Council in accordance with a special legislative procedure, the European Council may adopt a decision allowing for the adoption of such acts in accordance with the ordinary legislative procedure. Any initiative taken by the European Council on the basis of the first or the second subparagraph shall be notified to the national Parliaments. If a national Parliament makes known its opposition within six months of the date of such notification, the decision referred to in the first or the second subparagraph shall not be adopted. In the absence of opposition, the European Council may adopt the decision. For the adoption of the decisions referred to in the first and second subparagraphs, the European Council shall act by unanimity after obtaining the consent of the European Parliament, which shall be given by a majority of its component members.

EU03 · slide 18 · Three special mechanisms

And PASSERELLE CLAUSES (Articles 48(7) and 31(3) TEU), which allow a shift from unanimity to qualified majority voting without amending the Treaties.

EU03 · slide 18 · Three special mechanisms

Article 48(7) TEU or Article 31(3) TEU — the Treaties themselves authorise the switch.

Art. 49

Any European State which respects the values referred to in Article 2 and is committed to promoting them may apply to become a member of the Union. The European Parliament and national Parliaments shall be notified of this application. The applicant State shall address its application to the Council, which shall act unanimously after consulting the Commission and after receiving the consent of the European Parliament, which shall act by a majority of its component members. The conditions of eligibility agreed upon by the European Council shall be taken into account. The conditions of admission and the adjustments to the Treaties on which the Union is founded, which such admission entails, shall be the subject of an agreement between the Member States and the applicant State. This agreement shall be submitted for ratification by all the contracting States in accordance with their respective constitutional requirements.

EU05 · slide 12 · How primary law is changed

And separately, accession and withdrawal under Articles 49 and 50 TEU.

EU05 · slide 12 · How primary law is changed

The ordinary revision procedure under Art 48(1)-(5) TEU, with or without a Convention; the simplified procedures under Art 48(6) for Part III TFEU and Art 48(7) passerelles; plus accession and withdrawal under Arts 49 and 50 TEU.

EU05 · slide 14 · Article 49 TEU: who may join

What are the two conditions for accession under Article 49 TEU?

Art. 49(2)

(text at Art. 49 above)

EU05 · slide 20 · Accession phase 3: the Accession Treaty

Article 49(2) TEU: an agreement between the member states and the applicant.

Art. 50

1. Any Member State may decide to withdraw from the Union in accordance with its own constitutional requirements. 2. A Member State which decides to withdraw shall notify the European Council of its intention. In the light of the guidelines provided by the European Council, the Union shall negotiate and conclude an agreement with that State, setting out the arrangements for its withdrawal, taking account of the framework for its future relationship with the Union. That agreement shall be negotiated in accordance with Article 218(3) of the Treaty on the Functioning of the European Union. It shall be concluded on behalf of the Union by the Council, acting by a qualified majority, after obtaining the consent of the European Parliament. 3. The Treaties shall cease to apply to the State in question from the date of entry into force of the withdrawal agreement or, failing that, two years after the notification referred to in paragraph 2, unless the European Council, in agreement with the Member State concerned, unanimously decides to extend this period. 4. For the purposes of paragraphs 2 and 3, the member of the European Council or of the Council representing the withdrawing Member State shall not participate in the discussions of the European Council or Council or in decisions concerning it. A qualified majority shall be defined in accordance with Article 238(3)(b) of the Treaty on the Functioning of the European Union. 5. If a State which has withdrawn from the Union asks to rejoin [...]

EU05 · slide 22 · Withdrawal: Article 50 TEU

What happens under Article 50 TEU if no withdrawal agreement is concluded?

Art. 54(1)

1. This Treaty shall be ratified by the High Contracting Parties in accordance with their respective constitutional requirements. The instruments of ratification shall be deposited with the Government of the Italian Republic.

EU05 · slide 21 · Accession phase 4: ratification

And the small factual detail the lecturer likes to ask: the instruments of ratification are deposited with the GOVERNMENT OF THE ITALIAN REPUBLIC, under Article 54(1) TEU — because the founding Treaty of Rome was signed there.

EU05 · slide 21 · Accession phase 4: ratification

With the Government of the Italian Republic (Art 54(1) TEU) — a legacy of the Treaty of Rome.

No specific article

EU01 · slide 10 · The whole course in one diagram

Third column: the sources, arranged down a 'Hierarchy' arrow — primary law (TEU, TFEU, Charter, protocols, general principles), secondary law (regulations, directives, decisions), tertiary law (delegated and implementing acts), soft law, and the role of member state law.

EU01 · slide 10 · The whole course in one diagram

Primary law (TEU, TFEU, Charter, protocols, general principles) → secondary law (regulations, directives, decisions) → tertiary law (delegated and implementing acts) → soft law, with member state law below.

EU04 · slide 7 · The sources, in one picture

PRIMARY LAW: the TEU and TFEU, the protocols, the Charter of Fundamental Rights, and the general principles of law.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

TEU).

EU05 · slide 10 · What primary law consists of

Four components: the TEU and TFEU themselves; the protocols annexed to them, which have the same legal value; the Charter of Fundamental Rights; and the general principles of law.

EU05 · slide 10 · What primary law consists of

The TEU and TFEU, the protocols annexed to them (same legal value as the Treaties), the Charter of Fundamental Rights, and the general principles of EU law.

EU05 · slide 11 · What is in the TEU and what is in the TFEU

The TEU carries the constitutional frame: the objective of ever closer union, the Union's values, its tasks, the basic tasks of institutions and member states, fundamental rights, the institutions and their basic structure, the CFSP, the Union's legal personality, treaty amendment, accession and withdrawal, and the scope of application.

EU05 · slide 11 · What is in the TEU and what is in the TFEU

The catalogue of competences and the detailed policies are in the TFEU; the Union's values, objectives, basic institutional structure, accession and withdrawal are in the TEU.

2. Treaty on the Functioning of the European Union (TFEU)

Article texts: EUR-Lex, consolidated version (12016E/TXT)

Art. 2

1. When the Treaties confer on the Union exclusive competence in a specific area, only the Union may legislate and adopt legally binding acts, the Member States being able to do so themselves only if so empowered by the Union or for the implementation of Union acts. 2. When the Treaties confer on the Union a competence shared with the Member States in a specific area, the Union and the Member States may legislate and adopt legally binding acts in that area. The Member States shall exercise their competence to the extent that the Union has not exercised its competence. The Member States shall again exercise their competence to the extent that the Union has decided to cease exercising its competence. 3. The Member States shall coordinate their economic and employment policies within arrangements as determined by this Treaty, which the Union shall have competence to provide. 4. The Union shall have competence, in accordance with the provisions of the Treaty on European Union, to define and implement a common foreign and security policy, including the progressive framing of a common defence policy. 5. In certain areas and under the conditions laid down in the Treaties, the Union shall have competence to carry out actions to support, coordinate or supplement the actions of the Member States, without thereby superseding their competence in these areas. Legally binding acts of the Union adopted on the basis of the provisions of the Treaties relating to these areas shall not entail h [...]

EU04 · slide 14 · The common mistake: catalogue is not legal basis

The TYPE of competence comes from the catalogue in Articles 2 to 6 TFEU — exclusive (Arts 2(1), 3), shared (Arts 2(2), 4), coordinating/supporting/supplementing (Arts 2(3), 2(5), 5, 6), plus the CFSP (Art 2(4) TFEU, Arts 21 et seq.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

Articles 2-6 TFEU are a catalogue stating the TYPE of competence; the legal basis for an act comes from the relevant policy chapter of the TFEU (Art 2(6) TFEU).

Art. 2(1)

1. When the Treaties confer on the Union exclusive competence in a specific area, only the Union may legislate and adopt legally binding acts, the Member States being able to do so themselves only if so empowered by the Union or for the implementation of Union acts.

EU04 · slide 16 · Exclusive competence

Article 2(1) TFEU: where the Treaties confer exclusive competence, ONLY THE UNION may legislate and adopt legally binding acts; member states may do so only if empowered by the Union or to implement Union acts.

EU04 · slide 16 · Exclusive competence

Only if empowered by the Union to do so, or in order to implement Union acts (Art 2(1) TFEU).

Art. 2(2)

2. When the Treaties confer on the Union a competence shared with the Member States in a specific area, the Union and the Member States may legislate and adopt legally binding acts in that area. The Member States shall exercise their competence to the extent that the Union has not exercised its competence. The Member States shall again exercise their competence to the extent that the Union has decided to cease exercising its competence.

EU04 · slide 18 · Shared competence and pre-emption

Article 2(2) TFEU: both the Union and the member states may legislate, but the member states exercise their competence TO THE EXTENT THAT the Union has not exercised its own — and regain it to the extent the Union decides to cease exercising it.

EU04 · slide 18 · Shared competence and pre-emption

They lose it to the extent the Union has exercised its competence — pre-emption under Art 2(2) TFEU — and regain it if the Union decides to cease exercising it.

Art. 2(4)

4. The Union shall have competence, in accordance with the provisions of the Treaty on European Union, to define and implement a common foreign and security policy, including the progressive framing of a common defence policy.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

The TYPE of competence comes from the catalogue in Articles 2 to 6 TFEU — exclusive (Arts 2(1), 3), shared (Arts 2(2), 4), coordinating/supporting/supplementing (Arts 2(3), 2(5), 5, 6), plus the CFSP (Art 2(4) TFEU, Arts 21 et seq.

Art. 2(5)

5. In certain areas and under the conditions laid down in the Treaties, the Union shall have competence to carry out actions to support, coordinate or supplement the actions of the Member States, without thereby superseding their competence in these areas. Legally binding acts of the Union adopted on the basis of the provisions of the Treaties relating to these areas shall not entail harmonisation of Member States' laws or regulations.

EU04 · slide 19 · Supporting, coordinating and supplementary competence

Article 2(5) TFEU: the Union may carry out actions to support, coordinate or supplement member state action WITHOUT superseding their competence — and legally binding acts adopted on these bases SHALL NOT ENTAIL HARMONISATION of member states' laws.

EU04 · slide 19 · Supporting, coordinating and supplementary competence

They may not entail harmonisation of member states' laws or regulations (Art 2(5) TFEU), and they do not supersede member state competence.

Art. 2(6)

6. The scope of and arrangements for exercising the Union's competences shall be determined by the provisions of the Treaties relating to each area.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

Article 2(6) TFEU says so expressly: the scope of and arrangements for exercising the Union's competences are determined by the provisions of the Treaties relating to each area.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

Articles 2-6 TFEU are a catalogue stating the TYPE of competence; the legal basis for an act comes from the relevant policy chapter of the TFEU (Art 2(6) TFEU).

Art. 3

1. The Union shall have exclusive competence in the following areas: (a) customs union; (b) the establishing of the competition rules necessary for the functioning of the internal market; (c) monetary policy for the Member States whose currency is the euro; (d) the conservation of marine biological resources under the common fisheries policy; (e) common commercial policy. 2. The Union shall also have exclusive competence for the conclusion of an international agreement when its conclusion is provided for in a legislative act of the Union or is necessary to enable the Union to exercise its internal competence, or in so far as its conclusion may affect common rules or alter their scope.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

So you cannot legislate on Article 3 TFEU; you legislate on the article in the policy chapter, and the catalogue only tells you what kind of competence it is.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

Can an EU act be based on Article 3 TFEU, which lists the exclusive competences?

Art. 3(1)(b)

1. The Union shall have exclusive competence in the following areas: (a) customs union; (b) the establishing of the competition rules necessary for the functioning of the internal market; (c) monetary policy for the Member States whose currency is the euro; (d) the conservation of marine biological resources under the common fisheries policy; (e) common commercial policy.

EU04 · slide 15 · Worked example: competition policy

Catalogue: competition rules necessary for the functioning of the internal market are an EXCLUSIVE Union competence under Article 3(1)(b) TFEU.

EU04 · slide 15 · Worked example: competition policy

Step 1, catalogue: competition rules for the internal market are an exclusive competence, Art 3(1)(b) TFEU.

Art. 3(2)

2. The Union shall also have exclusive competence for the conclusion of an international agreement when its conclusion is provided for in a legislative act of the Union or is necessary to enable the Union to exercise its internal competence, or in so far as its conclusion may affect common rules or alter their scope.

EU04 · slide 17 · Exclusive external competence (Art 3(2) TFEU)

Where conclusion is provided for in a Union legislative act; where it is necessary to enable the Union to exercise its internal competence; or in so far as it may affect common rules or alter their scope (Art 3(2) TFEU).

Art. 4(3)

3. In the areas of research, technological development and space, the Union shall have competence to carry out activities, in particular to define and implement programmes; however, the exercise of that competence shall not result in Member States being prevented from exercising theirs.

EU04 · slide 18 · Shared competence and pre-emption

Research, technological development and space, and development cooperation and humanitarian aid — Art 4(3) and (4) TFEU.

Art. 18

Within the scope of application of the Treaties, and without prejudice to any special provisions contained therein, any discrimination on grounds of nationality shall be prohibited. The European Parliament and the Council, acting in accordance with the ordinary legislative procedure, may adopt rules designed to prohibit such discrimination.

EU07 · slide 17 · Two Treaty articles compared

Article 18 TFEU prohibits any discrimination on grounds of nationality within the scope of the Treaties — a clear, precise, unconditional prohibition, so directly effective.

EU07 · slide 17 · Two Treaty articles compared

Why does Article 18 TFEU have direct effect while Article 19 TFEU does not?

Art. 19

1. Without prejudice to the other provisions of the Treaties and within the limits of the powers conferred by them upon the Union, the Council, acting unanimously in accordance with a special legislative procedure and after obtaining the consent of the European Parliament, may take appropriate action to combat discrimination based on sex, racial or ethnic origin, religion or belief, disability, age or sexual orientation. 2. By way of derogation from paragraph 1, the European Parliament and the Council, acting in accordance with the ordinary legislative procedure, may adopt the basic principles of Union incentive measures, excluding any harmonisation of the laws and regulations of the Member States, to support action taken by the Member States in order to contribute to the achievement of the objectives referred to in paragraph 1.

EU07 · slide 17 · Two Treaty articles compared

Article 19 TFEU, by contrast, says the Council MAY TAKE APPROPRIATE ACTION to combat discrimination on grounds of sex, race, religion, disability, age or sexual orientation, acting unanimously with Parliament's consent.

EU07 · slide 17 · Two Treaty articles compared

Why does Article 18 TFEU have direct effect while Article 19 TFEU does not?

Art. 48(2)

The European Parliament and the Council shall, acting in accordance with the ordinary legislative procedure, adopt such measures in the field of social security as are necessary to provide freedom of movement for workers; to this end, they shall make arrangements to secure for employed and self-employed migrant workers and their dependants: (a) aggregation, for the purpose of acquiring and retaining the right to benefit and of calculating the amount of benefit, of all periods taken into account under the laws of the several countries; (b) payment of benefits to persons resident in the territories of Member States. Where a member of the Council declares that a draft legislative act referred to in the first subparagraph would affect important aspects of its social security system, including its scope, cost or financial structure, or would affect the financial balance of that system, it may request that the matter be referred to the European Council. In that case, the ordinary legislative procedure shall be suspended. After discussion, the European Council shall, within four months of this suspension, either: (a) refer the draft back to the Council, which shall terminate the suspension of the ordinary legislative procedure; or (b) take no action or request the Commission to submit a new proposal; in that case, the act originally proposed shall be deemed not to have been adopted. RIGHT OF ESTABLISHMENT

EU03 · slide 18 · Three special mechanisms

The EMERGENCY BRAKE: a member state can suspend a file and refer it to the European Council, in social security (Article 48(2) TFEU) and in criminal law (Articles 82(3) and 83(2) TFEU) — a political safety valve for qualified majority voting.

Art. 48(6)

(text at Art. 48(2) above)

EU05 · slide 12 · How primary law is changed

The ordinary revision procedure under Art 48(1)-(5) TEU, with or without a Convention; the simplified procedures under Art 48(6) for Part III TFEU and Art 48(7) passerelles; plus accession and withdrawal under Arts 49 and 50 TEU.

Art. 82(3)

3. Where a member of the Council considers that a draft directive as referred to in paragraph 2 would affect fundamental aspects of its criminal justice system, it may request that the draft directive be referred to the European Council. In that case, the ordinary legislative procedure shall be suspended. After discussion, and in case of a consensus, the European Council shall, within four months of this suspension, refer the draft back to the Council, which shall terminate the suspension of the ordinary legislative procedure. Within the same timeframe, in case of disagreement, and if at least nine Member States wish to establish enhanced cooperation on the basis of the draft directive concerned, they shall notify the European Parliament, the Council and the Commission accordingly. In such a case, the authorisation to proceed with enhanced cooperation referred to in Article 20(2) of the Treaty on European Union and Article 329(1) of this Treaty shall be deemed to be granted and the provisions on enhanced cooperation shall apply.

EU03 · slide 18 · Three special mechanisms

The EMERGENCY BRAKE: a member state can suspend a file and refer it to the European Council, in social security (Article 48(2) TFEU) and in criminal law (Articles 82(3) and 83(2) TFEU) — a political safety valve for qualified majority voting.

Art. 101(1)

1. The following shall be prohibited as incompatible with the internal market: all agreements between undertakings, decisions by associations of undertakings and concerted practices which may affect trade between Member States and which have as their object or effect the prevention, restriction or distortion of competition within the internal market, and in particular those which: (a) directly or indirectly fix purchase or selling prices or any other trading conditions; (b) limit or control production, markets, technical development, or investment; (c) share markets or sources of supply; (d) apply dissimilar conditions to equivalent transactions with other trading parties, thereby placing them at a competitive disadvantage; (e) make the conclusion of contracts subject to acceptance by the other parties of supplementary obligations which, by their nature or according to commercial usage, have no connection with the subject of such contracts.

EU07 · slide 18 · SABAM: horizontal direct effect in practice

Case 127/73: as the prohibitions of Articles 101(1) and 102 TFEU tend BY THEIR VERY NATURE to produce direct effects in relations between individuals, these articles create direct rights for the individuals concerned which national courts must safeguard.

EU07 · slide 18 · SABAM: horizontal direct effect in practice

Articles 101(1) and 102 TFEU, the competition rules (SABAM, 127/73): they are addressed to undertakings, so by their very nature they produce effects in relations between individuals.

Art. 103(1)

1. The appropriate regulations or directives to give effect to the principles set out in Articles 101 and 102 shall be laid down by the Council, on a proposal from the Commission and after consulting the European Parliament.

EU04 · slide 15 · Worked example: competition policy

Legal basis: the competition chapter supplies Article 103(1) TFEU, under which the appropriate regulations or directives giving effect to Articles 101 and 102 are laid down by the Council on a Commission proposal after consulting the Parliament.

EU04 · slide 15 · Worked example: competition policy

Step 2, legal basis: Art 103(1) TFEU in the competition chapter, under which the Council legislates on a Commission proposal after consulting Parliament.

Art. 126

1. Member States shall avoid excessive government deficits. 2. The Commission shall monitor the development of the budgetary situation and of the stock of government debt in the Member States with a view to identifying gross errors. In particular it shall examine compliance with budgetary discipline on the basis of the following two criteria: (a) whether the ratio of the planned or actual government deficit to gross domestic product exceeds a reference value, unless: — either the ratio has declined substantially and continuously and reached a level that comes close to the reference value, — or, alternatively, the excess over the reference value is only exceptional and temporary and the ratio remains close to the reference value; (b) whether the ratio of government debt to gross domestic product exceeds a reference value, unless the ratio is sufficiently diminishing and approaching the reference value at a satisfactory pace. The reference values are specified in the Protocol on the excessive deficit procedure annexed to the Treaties. 3. If a Member State does not fulfil the requirements under one or both of these criteria, the Commission shall prepare a report. The report of the Commission shall also take into account whether the government deficit exceeds government investment expenditure and take into account all other relevant factors, including the medium-term economic and budgetary position of the Member State. The Commission may also prepare a report if, notwithstanding [...]

EU03 · slide 18 · Three special mechanisms

REVERSE QUALIFIED MAJORITY, used in the excessive deficit procedure (Article 126 TFEU): the Commission's proposal stands UNLESS a qualified majority votes against it, which inverts the burden and strengthens the Commission enormously.

EU03 · slide 18 · Three special mechanisms

Used for instance in the excessive deficit procedure under Article 126 TFEU.

Art. 127

1. The primary objective of the European System of Central Banks (hereinafter referred to as 'the ESCB') shall be to maintain price stability. Without prejudice to the objective of price stability, the ESCB shall support the general economic policies in the Union with a view to contributing to the achievement of the objectives of the Union as laid down in Article 3 of the Treaty on European Union. The ESCB shall act in accordance with the principle of an open market economy with free competition, favouring an efficient allocation of resources, and in compliance with the principles set out in Article 119. 2. The basic tasks to be carried out through the ESCB shall be: — to define and implement the monetary policy of the Union, — to conduct foreign-exchange operations consistent with the provisions of Article 219, — to hold and manage the official foreign reserves of the Member States, — to promote the smooth operation of payment systems. 3. The third indent of paragraph 2 shall be without prejudice to the holding and management by the governments of Member States of foreign-exchange working balances. 4. The European Central Bank shall be consulted: — on any proposed Union act in its fields of competence, — by national authorities regarding any draft legislative provision in its fields of competence, but within the limits and under the conditions set out by the Council in accordance with the procedure laid down in Article 129(4). The European Central Bank may submit opinions to [...]

EU03 · slide 35 · The European Central Bank

Its tasks under Article 127 TFEU: to define and implement the Union's monetary policy, with PRICE STABILITY as the objective; to conduct foreign-exchange operations; to hold and manage the member states' official foreign reserves; and to promote the smooth operation of payment systems.

EU03 · slide 35 · The European Central Bank

Price stability, in defining and implementing the Union's monetary policy under Article 127 TFEU.

Art. 216

1. The Union may conclude an agreement with one or more third countries or international organisations where the Treaties so provide or where the conclusion of an agreement is necessary in order to achieve, within the framework of the Union's policies, one of the objectives referred to in the Treaties, or is provided for in a legally binding Union act or is likely to affect common rules or alter their scope. 2. Agreements concluded by the Union are binding upon the institutions of the Union and on its Member States.

EU04 · slide 17 · Exclusive external competence (Art 3(2) TFEU)

See also Article 216 TFEU.

Art. 238(1)

and (2), TEC) 1. Where it is required to act by a simple majority, the Council shall act by a majority of its component members. 2. By way of derogation from Article 16(4) of the Treaty on European Union, as from 1 November 2014 and subject to the provisions laid down in the Protocol on transitional provisions, where the Council does not act on a proposal from the Commission or from the High Representative of the Union for Foreign Affairs and Security Policy, the qualified majority shall be defined as at least 72 % of the members of the Council, representing Member States comprising at least 65 % of the population of the Union. 3. As from 1 November 2014 and subject to the provisions laid down in the Protocol on transitional provisions, in cases where, under the Treaties, not all the members of the Council participate in voting, a qualified majority shall be defined as follows: (a) A qualified majority shall be defined as at least 55 % of the members of the Council representing the participating Member States, comprising at least 65 % of the population of these States. A blocking minority must include at least the minimum number of Council members representing more than 35 % of the population of the participating Member States, plus one member, failing which the qualified majority shall be deemed attained; (b) By way of derogation from point (a), where the Council does not act on a proposal from the Commission or from the High Representative of the Union for Foreign Affairs a [...]

EU03 · slide 17 · The four voting thresholds

SIMPLE MAJORITY, for procedural matters: 50 per cent of member states plus one (Article 238(1) TFEU).

Art. 238(2)

2. By way of derogation from Article 16(4) of the Treaty on European Union, as from 1 November 2014 and subject to the provisions laid down in the Protocol on transitional provisions, where the Council does not act on a proposal from the Commission or from the High Representative of the Union for Foreign Affairs and Security Policy, the qualified majority shall be defined as at least 72 % of the members of the Council, representing Member States comprising at least 65 % of the population of the Union.

EU03 · slide 17 · The four voting thresholds

SUPER-QUALIFIED MAJORITY under Article 238(2) TFEU: 72 per cent of member states representing 65 per cent of the population — used where the Council acts without a Commission proposal.

EU03 · slide 17 · The four voting thresholds

Under Article 238(2) TFEU, where it acts without a Commission proposal: 72 per cent of the member states representing 65 per cent of the population.

Art. 255

A panel shall be set up in order to give an opinion on candidates' suitability to perform the duties of Judge and Advocate-General of the Court of Justice and the General Court before the governments of the Member States make the appointments referred to in Articles 253 and 254. The panel shall comprise seven persons chosen from among former members of the Court of Justice and the General Court, members of national supreme courts and lawyers of recognised competence, one of whom shall be proposed by the European Parliament. The Council shall adopt a decision establishing the panel's operating rules and a decision appointing its members. It shall act on the initiative of the President of the Court of Justice.

EU09 · slide 9 · Appointment of judges

Under Article 255 TFEU a panel gives an opinion on candidates' suitability before the member states appoint them by common accord.

EU09 · slide 10 · The Article 255 panel itself

How is the Article 255 TFEU panel composed?

Art. 256

1. The General Court shall have jurisdiction to hear and determine at first instance actions or proceedings referred to in Articles 263, 265, 268, 270 and 272, with the exception of those assigned to a specialised court set up under Article 257 and those reserved in the Statute for the Court of Justice. The Statute may provide for the General Court to have jurisdiction for other classes of action or proceeding. Decisions given by the General Court under this paragraph may be subject to a right of appeal to the Court of Justice on points of law only, under the conditions and within the limits laid down by the Statute. 2. The General Court shall have jurisdiction to hear and determine actions or proceedings brought

against decisions of the specialised courts. Decisions given by the General Court under this paragraph may exceptionally be subject to review by the Court of Justice, under the conditions and within the limits laid down by the Statute, where there is a serious risk of the unity or consistency of Union law being affected. 3. The General Court shall have jurisdiction to hear and determine questions referred for a preliminary ruling under Article 267, in specific areas laid down by the Statute. Where the General Court considers that the case requires a decision of principle likely to affect the unity or consistency of Union law, it may refer the case to the Court of Justice for a ruling. Decisions given by the General Court on questions referred for a preliminary ruling [...]

EU09 · slide 13 · Who hears what

The division of jurisdiction under Article 256 TFEU and Article 51 of the Statute.

EU09 · slide 41 · Jurisdiction

Exclusively the Court of Justice — Article 258 TFEU with Article 256 TFEU and Article 51 of the Statute.

Art. 256(1)

1. The General Court shall have jurisdiction to hear and determine at first instance actions or proceedings referred to in Articles 263, 265, 268, 270 and 272, with the exception of those assigned to a specialised court set up under Article 257 and those reserved in the Statute for the Court of Justice. The Statute may provide for the General Court to have jurisdiction for other classes of action or proceeding. Decisions given by the General Court under this paragraph may be subject to a right of appeal to the Court of Justice on points of law only, under the conditions and within the limits laid down by the Statute.

EU10 · slide 5 · Which court

Under Article 256(1) TFEU and Article 51 of the Statute: applications by Union institutions and member states go to the Court of Justice; applications by natural and legal persons go to the General Court.

EU10 · slide 5 · Which court

A natural or legal person brings it before the General Court; a member state or Union institution before the Court of Justice (Art 256(1) TFEU, Art 51 Statute).

Art. 256(3)

3. The General Court shall have jurisdiction to hear and determine questions referred for a preliminary ruling under Article 267, in specific areas laid down by the Statute. Where the General Court considers that the case requires a decision of principle likely to affect the unity or consistency of Union law, it may refer the case to the Court of Justice for a ruling. Decisions given by the General Court on questions referred for a preliminary ruling may exceptionally be subject to review by the Court of Justice, under the conditions and within the limits laid down by the Statute, where there is a serious risk of the unity or consistency of Union law being affected.

EU09 · slide 16 · Jurisdiction over references

Exclusively the Court of Justice under Article 267(1) TFEU, with the possibility of transferring defined areas to the General Court under Article 256(3) TFEU — a possibility that has recently begun to be used.

Art. 257

The European Parliament and the Council, acting in accordance with the ordinary legislative procedure, may establish specialised courts attached to the General Court to hear and determine at first instance certain classes of action or proceeding brought in specific areas. The European Parliament and the Council shall act by means of regulations either on a proposal from the Commission after consultation of the Court of Justice or at the request of the Court of Justice after consultation of the Commission. The regulation establishing a specialised court shall lay down the rules on the organisation of the court and the extent of the jurisdiction conferred upon it. Decisions given by specialised courts may be subject to a right of appeal on points of law only or, when provided for in the regulation establishing the specialised court, a right of appeal also on matters of fact, before the General Court. The members of the specialised courts shall be chosen from persons whose independence is beyond doubt and who possess the ability required for appointment to judicial office. They shall be appointed by the Council, acting unanimously. The specialised courts shall establish their Rules of Procedure in agreement with the Court of Justice. Those Rules shall require the approval of the Council. Unless the regulation establishing the specialised court provides otherwise, the provisions of the Treaties relating to the Court of Justice of the European Union and the provisions of the Statute [...]

EU09 · slide 7 · The structure of the CJEU

Under it sit the Court of Justice (the ECJ), the General Court, and possible specialised tribunals under Article 257 TFEU.

EU09 · slide 7 · The structure of the CJEU

The institution as a whole: the Court of Justice (ECJ), the General Court, and any specialised courts under Article 257 TFEU.

Art. 258

If the Commission considers that a Member State has failed to fulfil an obligation under the Treaties, it shall deliver a reasoned opinion on the matter after giving the State concerned the opportunity to submit its observations. If the State concerned does not comply with the opinion within the period laid down by the Commission, the latter may bring the matter before the Court of Justice of the European Union.

EU09 · slide 11 · The four main procedures

Infringement, Articles 258-260 TFEU.

EU09 · slide 41 · Jurisdiction

Exclusively the Court of Justice — Article 258 TFEU with Article 256 TFEU and Article 51 of the Statute.

EU09 · slide 42 · Who can bring it

The Commission under Article 258 TFEU and another member state under Article 259 TFEU.

Art. 259

A Member State which considers that another Member State has failed to fulfil an obligation under the Treaties may bring the matter before the Court of Justice of the European Union. Before a Member State brings an action against another Member State for an alleged infringement of an obligation under the Treaties, it shall bring the matter before the Commission. The Commission shall deliver a reasoned opinion after each of the States concerned has been given the opportunity to submit its own case and its observations on the other party's case both orally and in writing. If the Commission has not delivered an opinion within three months of the date on which the matter was brought before it, the absence of such opinion shall not prevent the matter from being brought before the Court.

EU09 · slide 42 · Who can bring it

The Commission under Article 258 TFEU and another member state under Article 259 TFEU.

Art. 260(3)

3. When the Commission brings a case before the Court pursuant to Article 258 on the grounds that the Member State concerned has failed to fulfil its obligation to notify measures transposing a directive adopted under a legislative procedure, it may, when it deems appropriate, specify the amount of the lump sum or penalty payment to be paid by the Member State concerned which it considers appropriate in the circumstances. If the Court finds that there is an infringement it may impose a lump sum or penalty payment on the Member State concerned not exceeding the amount specified by the Commission. The payment obligation shall take effect on the date set by the Court in its judgment.

EU09 · slide 45 · Judgment and what follows

What is special about Article 260(3) TFEU?

Art. 263

The Court of Justice of the European Union shall review the legality of legislative acts, of acts of the Council, of the Commission and of the European Central Bank, other than recommendations and opinions, and of acts of the European Parliament and of the European Council intended to produce legal effects vis-à-vis third parties. It shall also review the legality of acts of bodies, offices or agencies of the Union intended to produce legal effects vis-à-vis third parties. It shall for this purpose have jurisdiction in actions brought by a Member State, the European Parliament, the Council or the Commission on grounds of lack of competence, infringement of an essential procedural requirement, infringement of the Treaties or of any rule of law relating to their application, or misuse of powers. The Court shall have jurisdiction under the same conditions in actions brought by the Court of Auditors, by the European Central Bank and by the Committee of the Regions for the purpose of protecting their prerogatives. Any natural or legal person may, under the conditions laid down in the first and second paragraphs, institute proceedings against an act addressed to that person or which is of direct and individual concern to them, and against a regulatory act which is of direct concern to them and does not entail implementing measures. Acts setting up bodies, offices and agencies of the Union may lay down specific conditions and arrangements concerning actions brought by natural or legal [...]

EU09 · slide 11 · The four main procedures

Action for annulment, Articles 263 and 264 TFEU.

Art. 263(4)

(text at Art. 263 above)

EU10 · slide 8 · Article 263(4): the three gateways

State the three alternatives under Article 263(4) TFEU for a non-privileged applicant.

EU10 · slide 12 · Gateway 3: regulatory acts

What is a 'regulatory act' under Article 263(4) TFEU after Inuit?

Art. 265

Should the European Parliament, the European Council, the Council, the Commission or the European Central Bank, in infringement of the Treaties, fail to act, the Member States and the other institutions of the Union may bring an action before the Court of Justice of the European Union to have the infringement established. This Article shall apply, under the same conditions, to bodies, offices and agencies of the Union which fail to act. The action shall be admissible only if the institution, body, office or agency concerned has first been called upon to act. If, within two months of being so called upon, the institution, body, office or agency concerned has not defined its position, the action may be brought within a further period of two months. Any natural or legal person may, under the conditions laid down in the preceding paragraphs, complain to the Court that an institution, body, office or agency of the Union has failed to address to that person any act other than a recommendation or an opinion.

EU09 · slide 11 · The four main procedures

Action for failure to act, Article 265 TFEU.

EU10 · slide 15 · The requirements

The institution must first be called upon to act; only if it fails to define its position within two months of being so requested does the action lie (Art 265 TFEU).

EU10 · slide 16 · Standing differs from annulment

How does standing under Article 265 TFEU differ from Article 263?

Art. 267

The Court of Justice of the European Union shall have jurisdiction to give preliminary rulings concerning: (a) the interpretation of the Treaties; (b) the validity and interpretation of acts of the institutions, bodies, offices or agencies of the Union; Where such a question is raised before any court or tribunal of a Member State, that court or tribunal may, if it considers that a decision on the question is necessary to enable it to give judgment, request the Court to give a ruling thereon. Where any such question is raised in a case pending before a court or tribunal of a Member State against whose decisions there is no judicial remedy under national law, that court or tribunal shall bring the matter before the Court. If such a question is raised in a case pending before a court or tribunal of a Member State with regard to a person in custody, the Court of Justice of the European Union shall act with the minimum of delay.

EU07 · slide 11 · The second argument: the preliminary reference

The task assigned to the Court under what is now Article 267 TFEU — securing uniform interpretation of the Treaty by national courts — confirms that the states have acknowledged that Union law has an authority which can be INVOKED BY THEIR NATIONALS before those courts.

EU09 · slide 11 · The four main procedures

Preliminary reference, Article 267 TFEU.

EU09 · slide 11 · The four main procedures

Preliminary reference (Art 267 TFEU), infringement (Arts 258-260), action for annulment (Arts 263-264), and action for failure to act (Art 265).

EU09 · slide 19 · What counts as a court or tribunal

List the Vaassen criteria for a 'court or tribunal of a Member State' under Article 267 TFEU.

Art. 267(1)

(text at Art. 267 above)

EU09 · slide 16 · Jurisdiction over references

Exclusively the Court of Justice under Article 267(1) TFEU, with the possibility of transferring defined areas to the General Court under Article 256(3) TFEU — a possibility that has recently begun to be used.

Art. 267(3)

(text at Art. 267 above)

EU09 · slide 23 · Right and duty to refer

Courts or tribunals against whose decisions there is no judicial remedy under national law — Article 267(3) TFEU.

Art. 268

The Court of Justice of the European Union shall have jurisdiction in disputes relating to compensation for damage provided for in the second and third paragraphs of Article 340.

EU10 · slide 17 · The judgment and what follows

And the finding may give rise to the Union's tortious liability under Article 340 TFEU — to be pursued SEPARATELY through an action for damages under Article 268 TFEU.

Art. 287

1. The Court of Auditors shall examine the accounts of all revenue and expenditure of the Union. It shall also examine the accounts of all revenue and expenditure of all bodies, offices or agencies set up by the Union in so far as the relevant constituent instrument does not preclude such examination. The Court of Auditors shall provide the European Parliament and the Council with a statement of assurance as to the reliability of the accounts and the legality and regularity of the underlying transactions which shall be published in the Official Journal of the European Union. This statement may be supplemented by specific assessments for each major area of Union activity. 2. The Court of Auditors shall examine whether all revenue has been received and all expenditure incurred in a lawful and regular manner and whether the financial management has been sound. In doing so, it shall report in particular on any cases of irregularity. The audit of revenue shall be carried out on the basis both of the amounts established as due and the amounts actually paid to the Union. The audit of expenditure shall be carried out on the basis both of commitments undertaken and payments made. These audits may be carried out before the closure of accounts for the financial year in question. 3. The audit shall be based on records and, if necessary, performed on the spot in the other institutions of the Union, on the premises of any body, office or agency which manages revenue or expenditure on behalf [...]

EU03 · slide 36 · The European Court of Auditors

Under Article 287 TFEU it examines the accounts of all revenue and expenditure of the Union, including all bodies, offices and agencies.

Art. 288

To exercise the Union's competences, the institutions shall adopt regulations, directives, decisions, recommendations and opinions. A regulation shall have general application. It shall be binding in its entirety and directly applicable in all Member States. A directive shall be binding, as to the result to be achieved, upon each Member State to which it is addressed, but shall leave to the national authorities the choice of form and methods. A decision shall be binding in its entirety. A decision which specifies those to whom it is addressed shall be binding only on them. Recommendations and opinions shall have no binding force.

EU04 · slide 7 · The sources, in one picture

Article 288 TFEU lists exactly these five, and the division between the first three and the last two is the one the exam tests.

EU04 · slide 7 · The sources, in one picture

Which acts does Article 288 TFEU list, and which of them bind?

Art. 288(2)

(text at Art. 288 above)

EU05 · slide 29 · Regulations

Article 288(2) TFEU: a regulation shall have GENERAL APPLICATION, shall be BINDING IN ITS ENTIRETY and DIRECTLY APPLICABLE in all member states.

EU05 · slide 29 · Regulations

Give the definition of a regulation in the words of Article 288(2) TFEU.

Art. 288(3)

(text at Art. 288 above)

EU05 · slide 30 · Directives

Article 288(3) TFEU: a directive shall be binding, AS TO THE RESULT TO BE ACHIEVED, upon each member state to which it is addressed, but shall leave to the national authorities the choice of FORM AND METHODS.

EU05 · slide 30 · Directives

Give the definition of a directive under Article 288(3) TFEU and say what follows from it.

EU07 · slide 31 · Why not horizontally?

A directive is ADDRESSED ONLY TO MEMBER STATES under Article 288(3) TFEU.

EU07 · slide 31 · Why not horizontally?

They are addressed only to member states (Art 288(3) TFEU); the private party has committed no wrongdoing, so estoppel does not apply; horizontal effect would blur the difference between regulations and directives; and legal certainty.

Art. 288(4)

(text at Art. 288 above)

EU05 · slide 31 · Decisions

Article 288(4) TFEU: a decision shall be binding in its entirety; a decision which specifies those to whom it is addressed shall be binding only on them.

Art. 289

1. The ordinary legislative procedure shall consist in the joint adoption by the European Parliament and the Council of a regulation, directive or decision on a proposal from the Commission. This procedure is defined in Article 294. 2. In the specific cases provided for by the Treaties, the adoption of a regulation, directive or decision by the European Parliament with the participation of the Council, or by the latter with the participation of the European Parliament, shall constitute a special legislative procedure. 3. Legal acts adopted by legislative procedure shall constitute legislative acts. 4. In the specific cases provided for by the Treaties, legislative acts may be adopted on the initiative of a group of Member States or of the European Parliament, on a recommendation from the European Central Bank or at the request of the Court of Justice or the European Investment Bank.

EU01 · slide 19 · A real problem question

(b) How are the legal acts adopted pursuant to a procedure under Article 289 TFEU called? — one point.

EU01 · slide 19 · A real problem question

What are acts adopted under a procedure of Article 289 TFEU called?

Art. 289(1)

1. The ordinary legislative procedure shall consist in the joint adoption by the European Parliament and the Council of a regulation, directive or decision on a proposal from the Commission. This procedure is defined in Article

EU01 · slide 19 · A real problem question

(a) How does the ordinary legislative procedure under Articles 289(1) and 294 TFEU differ from the special legislative procedure under Article 289(2) TFEU? — one point.

EU01 · slide 19 · A real problem question

How does the ordinary legislative procedure (Arts 289(1), 294 TFEU) differ from the special one (Art 289(2) TFEU)?

Art. 289(2)

2. In the specific cases provided for by the Treaties, the adoption of a regulation, directive or decision by the European Parliament with the participation of the Council, or by the latter with the participation of the European Parliament, shall constitute a special legislative procedure.

EU01 · slide 19 · A real problem question

(a) How does the ordinary legislative procedure under Articles 289(1) and 294 TFEU differ from the special legislative procedure under Article 289(2) TFEU? — one point.

EU01 · slide 19 · A real problem question

How does the ordinary legislative procedure (Arts 289(1), 294 TFEU) differ from the special one (Art 289(2) TFEU)?

Art. 289(3)

(text at Art. 289 above)

EU04 · slide 34 · Two legislative procedures

The ordinary legislative procedure and the special legislative procedure — and the slide's marginal note matters: NON-legislative acts follow different procedures again, see Article 289(3) TFEU.

Art. 290

1. A legislative act may delegate to the Commission the power to adopt non-legislative acts of general application to supplement or amend certain non-essential elements of the legislative act. The objectives, content, scope and duration of the delegation of power shall be explicitly defined in the legislative acts. The essential elements of an area shall be reserved for the legislative act and accordingly shall not be the subject of a delegation of power. 2. Legislative acts shall explicitly lay down the conditions to which the delegation is subject; these conditions may be as follows: (a) the European Parliament or the Council may decide to revoke the delegation; (b) the delegated act may enter into force only if no objection has been expressed by the European Parliament or the Council within a period set by the legislative act. For the purposes of (a) and (b), the European Parliament shall act by a majority of its component members, and the Council by a qualified majority. 3. The adjective 'delegated' shall be inserted in the title of delegated acts.

EU05 · slide 33 · Tertiary law

Two instruments below secondary law: delegated acts under Article 290 TFEU and implementing acts under Article 291 TFEU.

EU05 · slide 34 · Delegated acts (Art 290 TFEU)

What are the three limits on delegated acts under Article 290 TFEU?

Art. 291

1. Member States shall adopt all measures of national law necessary to implement legally binding Union acts. 2. Where uniform conditions for implementing legally binding Union acts are needed, those acts shall confer implementing powers on the Commission, or, in duly justified specific cases and in the cases provided for in Articles 24 and 26 of the Treaty on European Union, on the Council. 3. For the purposes of paragraph 2, the European Parliament and the Council, acting by means of regulations in accordance with the ordinary legislative procedure, shall lay down in advance the rules and general principles concerning mechanisms for control by Member States of the Commission's exercise of implementing powers. 4. The word 'implementing' shall be inserted in the title of implementing acts.

EU05 · slide 33 · Tertiary law

Two instruments below secondary law: delegated acts under Article 290 TFEU and implementing acts under Article 291 TFEU.

EU05 · slide 36 · Implementing acts (Art 291 TFEU)

The Commission adopts an implementing act only where uniform conditions for implementation are needed (Art 291 TFEU) — exceptionally the Council under Arts 24-25 TEU.

EU05 · slide 37 · Comitology: how implementing acts are adopted

COMITOLGY is the procedure governing the adoption of a significant part of the implementing acts by the Commission, and it is the answer to the obvious objection to Article 291 TFEU: if implementation is in principle the member states' job, why should the Commission be allowed to do it alone?

Art. 291(1)

(text at Art. 291 above)

EU08 · slide 29 · Decentralised enforcement as the rule

Member states are generally responsible for enforcing and implementing EU acts — through their AUTHORITIES under Article 291(1) TFEU and through their COURTS under Article 19(1) second subparagraph TEU.

EU08 · slide 29 · Decentralised enforcement as the rule

The member states as a rule — their authorities under Article 291(1) TFEU and their courts under Article 19(1) second subparagraph TEU.

Art. 340

The contractual liability of the Union shall be governed by the law applicable to the contract in question. In the case of non-contractual liability, the Union shall, in accordance with the general principles common to the laws of the Member States, make good any damage caused by its institutions or by its servants in the performance of their duties. Notwithstanding the second paragraph, the European Central Bank shall, in accordance with the general principles common to the laws of the Member States, make good any damage caused by it or by its servants in the performance of their duties. The personal liability of its servants towards the Union shall be governed by the provisions laid down in their Staff Regulations or in the Conditions of Employment applicable to them.

EU06 · slide 11 · Eight features that make EU law special

STATE LIABILITY: protection against violations by the institutions (Art 340 TFEU) and by member states.

EU08 · slide 53 · The legal basis

The slide is emphatic about what it is NOT: not Article 340 TFEU, which governs the liability of the UNION; and not member state law, although member state law supplies the procedure.

EU08 · slide 53 · The legal basis

A general principle of EU law derived from Arts 4(3) and 19(1) TEU and effet utile — NOT Article 340 TFEU, which concerns the liability of the Union, and not national law, which only supplies the procedure.

EU10 · slide 17 · The judgment and what follows

And the finding may give rise to the Union's tortious liability under Article 340 TFEU — to be pursued SEPARATELY through an action for damages under Article 268 TFEU.

EU10 · slide 17 · The judgment and what follows

The institution must then act; and the finding may found a separate damages claim against the Union under Arts 340 and 268 TFEU.

Art. 352

1. If action by the Union should prove necessary, within the framework of the policies defined in the Treaties, to attain one of the objectives set out in the Treaties, and the Treaties have not provided the necessary powers, the Council, acting unanimously on a proposal from the Commission and after obtaining the consent of the European Parliament, shall adopt the appropriate measures. Where the measures in question are adopted by the Council in accordance with a special legislative procedure, it shall also act unanimously on a proposal from the Commission and after obtaining the consent of the European Parliament. 2. Using the procedure for monitoring the subsidiarity principle referred to in Article 5(3) of the Treaty on European Union, the Commission shall draw national Parliaments' attention to proposals based on this Article. 3. Measures based on this Article shall not entail harmonisation of Member States' laws or regulations in cases where the Treaties exclude such harmonisation. 4. This Article cannot serve as a basis for attaining objectives pertaining to the common foreign and security policy and any acts adopted pursuant to this Article shall respect the limits set out in Article 40, second paragraph, of the Treaty on European Union.

EU04 · slide 21 · The flexibility clause, Article 352 TFEU

What are the conditions and the limits of Article 352 TFEU?

No specific article

EU01 · slide 10 · The whole course in one diagram

Third column: the sources, arranged down a 'Hierarchy' arrow — primary law (TEU, TFEU, Charter, protocols, general principles), secondary law (regulations, directives, decisions), tertiary law (delegated and implementing acts), soft law, and the role of member state law.

EU01 · slide 10 · The whole course in one diagram

Primary law (TEU, TFEU, Charter, protocols, general principles) → secondary law (regulations, directives, decisions) → tertiary law (delegated and implementing acts) → soft law, with member state law below.

EU04 · slide 7 · The sources, in one picture

PRIMARY LAW: the TEU and TFEU, the protocols, the Charter of Fundamental Rights, and the general principles of law.

EU04 · slide 14 · The common mistake: catalogue is not legal basis

The LEGAL BASIS comes from the policy chapters of the TFEU.

EU05 · slide 10 · What primary law consists of

Four components: the TEU and TFEU themselves; the protocols annexed to them, which have the same legal value; the Charter of Fundamental Rights; and the general principles of law.

EU05 · slide 10 · What primary law consists of

The TEU and TFEU, the protocols annexed to them (same legal value as the Treaties), the Charter of Fundamental Rights, and the general principles of EU law.

EU05 · slide 11 · What is in the TEU and what is in the TFEU

The TFEU carries the machinery: the catalogue of competences and cross-cutting principles, the internal policies in detail — citizenship, internal market, competition, external trade — and the detailed rules on the institutions, including the legislative and court procedures.

EU05 · slide 11 · What is in the TEU and what is in the TFEU

The catalogue of competences and the detailed policies are in the TFEU; the Union's values, objectives, basic institutional structure, accession and withdrawal are in the TEU.

EU05 · slide 12 · How primary law is changed

The SIMPLIFIED procedures (Art 48(6) and (7)): revision of the internal policies in Part III TFEU, and the two general passerelle clauses.

EU09 · slide 10 · The Article 255 panel itself

Under ARTICLE 255(2) TFEU the panel comprises SEVEN PERSONS chosen from among FORMER MEMBERS of the Court of Justice and the General Court, MEMBERS OF NATIONAL SUPREME COURTS and LAWYERS OF RECOGNISED COMPETENCE, ONE of whom is PROPOSED BY THE EUROPEAN PARLIAMENT.

3. Charter of Fundamental Rights of the EU

Article texts: EUR-Lex (12016P/TXT)

Art. 47

Right to an effective remedy and to a fair trial Everyone whose rights and freedoms guaranteed by the law of the Union are violated has the right to an effective remedy before a tribunal in compliance with the conditions laid down in this Article. Everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal previously established by law. Everyone shall have the possibility of being advised, defended and represented. Legal aid shall be made available to those who lack sufficient resources in so far as such aid is necessary to ensure effective access to justice.

EU08 · slide 18 · A newer route: the Charter

Case C-715/20, KL: the right to an effective remedy in Article 47 of the Charter may be invoked IN CONJUNCTION WITH Directive 1999/70 in a dispute between private individuals.

EU08 · slide 18 · A newer route: the Charter

Yes, on the C-715/20 KL line: Article 47 of the Charter may be invoked in conjunction with a directive between private individuals, because the operative norm is primary law.

EU08 · slide 20 · The five workarounds in one list

TRIANGULAR SITUATIONS and the INCIDENTAL EFFECT of directives, where the individual invokes the directive vertically against the state and a private third party bears the consequence (Delena Wells; the technical-standards line CIA Security, Unilever); 4. directives GIVING EXPRESSION TO A GENERAL PRINCIPLE of EU law, where the principle and not the directive does the work (Mangold, Küçükdeveci; and more recently Article 47 of the Charter in conjunction with a directive, KL C-715/20); 5.

No specific article

EU01 · slide 35 · Why the EU exists

They correspond to three historical layers — the post-war settlement, the common market, and the rights-and-values Union of the Maastricht era onwards — and they explain why the Treaties contain both market freedoms and a Charter of Fundamental Rights.

EU04 · slide 7 · The sources, in one picture

PRIMARY LAW: the TEU and TFEU, the protocols, the Charter of Fundamental Rights, and the general principles of law.

EU05 · slide 10 · What primary law consists of

Four components: the TEU and TFEU themselves; the protocols annexed to them, which have the same legal value; the Charter of Fundamental Rights; and the general principles of law.

EU05 · slide 10 · What primary law consists of

The TEU and TFEU, the protocols annexed to them (same legal value as the Treaties), the Charter of Fundamental Rights, and the general principles of EU law.

EU10 · slide 25 · The current stage

The Charter of Fundamental Rights, drawn up by a Convention in 2000 during the constitutionalisation process, became a binding part of PRIMARY LAW with the Treaty of Lisbon in 2009.

EU10 · slide 26 · Two bases today

And the CHARTER, which is primary law.

EU10 · slide 26 · Two bases today

The general principles did not disappear when the Charter became binding — they still cover what the Charter does not.

EU10 · slide 26 · Two bases today

The Charter of Fundamental Rights, which is primary law since Lisbon, and the general principles of Union law under Article 6(3) TEU, drawn from the ECHR and the member states' common constitutional traditions.

EU10 · slide 27 · Three generations of rights in the Charter

The Charter's inclusion of the second and third generations is what distinguishes it from the ECHR.

EU10 · slide 28 · Who holds Charter rights

Can a company invoke the Charter?

EU10 · slide 29 · Who is bound: Article 51(1)

In a case, always establish first that the situation falls within the scope of EU law — without that, the Charter does

not apply at all.

EU10 · slide 29 · Who is bound: Article 51(1)

What must be established before the Charter can be applied?

EU10 · slide 29 · Who is bound: Article 51(1)

Outside that scope the Charter does not bind the member state at all.

EU10 · slide 29 · Who is bound: Article 51(1)

Can the Charter be invoked between private parties?

4. Statute of the Court of Justice

Article texts: EUR-Lex, Protocol No 3 (12016E/PRO/03)

Art. 23

In the cases governed by Article 267 of the Treaty on the Functioning of the European Union, the decision of the court or tribunal of a Member State which suspends its proceedings and refers a case to the Court of Justice shall be notified to the Court by the court or tribunal concerned. The decision shall then be notified by the Registrar of the Court to the parties, to the Member States and to the Commission, and to the institution, body, office or agency of the Union which adopted the act the validity or interpretation of which is in dispute. Within two months of this notification, the parties, the Member States, the Commission and, where appropriate, the institution, body, office or agency which adopted the act the validity or interpretation of which is in dispute, shall be entitled to submit statements of case or written observations to the Court. In the cases governed by Article 267 of the Treaty on the Functioning of the European Union, the decision of the national court or tribunal shall, moreover, be notified by the Registrar of the Court to the States, other than the Member States, which are parties to the Agreement on the European Economic Area and also to the EFTA Surveillance Authority referred to in that Agreement which may, within two months of notification, where one of the fields of application of that Agreement is concerned, submit statements of case or written observations to the Court. Where an agreement relating to a specific subject matter, concluded by [...]

EU09 · slide 30 · The Registrar's role

The Registrar notifies the claimant, the defendant, the member states and the national court under Article 23 of the Statute.

EU09 · slide 33 · The written procedure

Under Article 23 of the Statute participants have TWO MONTHS to submit observations; member states may use their own language, others must use the language of the case, and observations are translated into the language of the case and into French — which remains the Court's main working language.

EU09 · slide 33 · The written procedure

The parties, the member states and the Commission under Article 23 of the Statute, within two months.

EU09 · slide 34 · Article 23 notification applied: Google v CNIL

In Google v CNIL (C-507/17), who was notified of the reference under Article 23 of the Statute?

EU09 · slide 34 · Article 23 notification applied: Google v CNIL

The parties, the member states and the Commission are merely NOTIFIED by the Registrar under Article 23 of the Statute and invited to submit observations TO THE COURT within two months — a preliminary reference is a dialogue between courts, not a private dispute that travelled to Luxembourg.

No specific article

EU09 · slide 13 · Who hears what

The division of jurisdiction under Article 256 TFEU and Article 51 of the Statute.

EU09 · slide 41 · Jurisdiction

Exclusively the Court of Justice — Article 258 TFEU with Article 256 TFEU and Article 51 of the Statute.

EU10 · slide 5 · Which court

Under Article 256(1) TFEU and Article 51 of the Statute: applications by Union institutions and member states go to the Court of Justice; applications by natural and legal persons go to the General Court.

5. Rules of Procedure of the Court

Article texts: EUR-Lex, Rules of Procedure of the Court of Justice (32012Q0929(01))

Art. 15

1. As soon as possible after the document initiating proceedings has been lodged, the President of the Court shall designate a Judge to act as Rapporteur in the case. 2. For cases of the kind referred to in Article 107 and Articles 193 and 194, the Judge-Rapporteur shall be selected from among the Judges of the Chamber designated in accordance with Article 11(2), on a proposal from the President of that Chamber. If, pursuant to Article 109, the Chamber decides that the reference is not to be dealt with under the urgent procedure, the President of the Court may reassign the case to a Judge-Rapporteur attached to another Chamber. 3. The President of the Court shall take the necessary steps if a Judge-Rapporteur is prevented from acting

EU09 · slide 31 · The Judge-Rapporteur

The President of the Court — Koen Lenaerts at the time — designates a Judge-Rapporteur under Article 15 of the Rules of Procedure; here Marko Ilešič.

Art. 16

1. The First Advocate General shall assign each case to an Advocate General. 2. The First Advocate General shall take the necessary steps if an Advocate General is prevented from acting. ASSISTANT RAPPORTEURS

EU09 · slide 32 · The Advocate General

The First Advocate General designates the Advocate General under Article 16 of the Rules of Procedure; here Maciej Szpunar.

Art. 59

1. When the written part of the procedure is closed, the President shall fix a date on which the Judge-Rapporteur is to present a preliminary report to the general meeting of the Court. 2. The preliminary report shall contain proposals as to whether particular measures of organisation of procedure, measures of inquiry or, if appropriate, requests to the referring court or tribunal for clarification should be undertaken, and as to the formation to which the case should be assigned. It shall also contain the Judge-Rapporteur's proposals, if any, as to whether to dispense with a hearing and as to whether to dispense with an Opinion of the Advocate General pursuant to the fifth paragraph of Article 20 of the Statute. 3. The Court shall decide, after hearing the Advocate General, what action to take on the proposals of the Judge-Rapporteur

EU09 · slide 36 · End of the written stage

The Judge-Rapporteur produces a preliminary report (Art 59 Rules of Procedure) for the general meeting, which decides whether clarifications are needed from the referring court, in which formation the case is heard — here the Grand Chamber — whether to dispense with a hearing, and whether to dispense with the Advocate General's Opinion, which is possible only where the case raises no new point of law (Art 20 Statute).

No specific article

EU03 · slide 25 · The President of the Parliament

The President represents Parliament externally and towards the other institutions, is responsible for applying its rules of procedure and therefore chairs all its work, and belongs to Parliament's administration alongside the Bureau, the Conference of Presidents and a Secretariat of more than 5,000 staff.

6. Treaty establishing the ECSC (Paris, 1951)

No specific article

EU04 · slide 20 · Implied powers

Case 8/55, Fédération Charbonnière: could the High Authority — today the Commission — fix coal prices on the internal market although the ECSC Treaty did not expressly say so?

7. Treaty establishing the EEC (Rome, 1957)

Article texts: Treaty of Rome 1957, original text (EUR-Lex refuses direct download; mirrored copy)

Art. 12

Member States shall refrain from introducing, as between themselves, any new customs duties on importation or exportation or charges with equivalent effect and from increasing such duties or charges as they apply in their commercial relations with each other.

EU06 · slide 9 · Van Gend en Loos: the facts

Van Gend & Loos, a transport company, argued that Dutch customs duties on a product imported from West Germany breached the standstill clause in Article 12 of the Treaty of Rome, which forbade member states to introduce new customs duties or raise existing ones.

EU07 · slide 8 · Van Gend en Loos: the facts

The same facts as in the primacy lecture: Dutch customs duty raised from 3 to 8 per cent on a product imported from West Germany, against the standstill clause of Article 12 of the Treaty of Rome.

No specific article

EU05 · slide 21 · Accession phase 4: ratification

And the small factual detail the lecturer likes to ask: the instruments of ratification are deposited with the GOVERNMENT OF THE ITALIAN REPUBLIC, under Article 54(1) TEU — because the founding Treaty of Rome was signed there.

EU05 · slide 21 · Accession phase 4: ratification

With the Government of the Italian Republic (Art 54(1) TEU) — a legacy of the Treaty of Rome.

EU06 · slide 17 · Costa v ENEL: the contractarian argument

By contrast with ordinary international treaties, the EEC Treaty created its OWN LEGAL SYSTEM which on entry into force became an integral part of the member states' legal systems and which their courts are bound to apply.

8. Single European Act (1986)

No specific article

EU01 · slide 37 · The milestones

Four: the Single Market through the Single European Act; Economic and Monetary Union; Political Union through the Maastricht Treaty; and enlargement.

EU01 · slide 37 · The milestones

The Single Market via the Single European Act; Economic and Monetary Union; Political Union through the Maastricht Treaty; and enlargement.

EU02 · slide 12 · The European Council: the facts

Its history explains its odd position: informal since 1974, formally established by the Single European Act, and only made an INSTITUTION by the Treaty of Lisbon in 2009.

EU02 · slide 12 · The European Council: the facts

It existed informally from 1974, was formalised by the Single European Act, and became an institution only with the Treaty of Lisbon (2009).

9. Maastricht Treaty (1992)

No specific article

EU01 · slide 37 · The milestones

Four: the Single Market through the Single European Act; Economic and Monetary Union; Political Union through the Maastricht Treaty; and enlargement.

EU01 · slide 37 · The milestones

The Single Market via the Single European Act; Economic and Monetary Union; Political Union through the Maastricht Treaty; and enlargement.

10. Treaty establishing a Constitution for Europe (2004)

No specific article

EU01 · slide 39 · Recent doubts

The counter-narrative, listed without comment: the failure of the EU constitutional treaty, the financial crisis, the migration crisis, Brexit, Covid, the Russian invasion of Ukraine, the rule of law crisis and the right-wing push.

EU01 · slide 39 · Recent doubts

Each of these produced legal responses you will meet later — the Lisbon Treaty after the constitutional treaty failed, the rule-of-law conditionality mechanism, and Article 50 itself.

EU06 · slide 14 · Where does primacy come from?

The Constitutional Treaty would have written it in; after its failure the Lisbon Treaty relegated it to Declaration 17, which merely recalls the case law.

11. Treaty of Lisbon (2007)

No specific article

EU01 · slide 39 · Recent doubts

Each of these produced legal responses you will meet later — the Lisbon Treaty after the constitutional treaty failed, the rule-of-law conditionality mechanism, and Article 50 itself.

EU02 · slide 12 · The European Council: the facts

Its history explains its odd position: informal since 1974, formally established by the Single European Act, and only made an INSTITUTION by the Treaty of Lisbon in 2009.

EU02 · slide 12 · The European Council: the facts

It existed informally from 1974, was formalised by the Single European Act, and became an institution only with the Treaty of Lisbon (2009).

EU03 · slide 12 · The ten configurations

Beside them sits the Euro Group — the ministers of the euro-area states, existing since 2004 with an elected President (currently Paschal Donohoe) and anchored in the Lisbon Treaty.

EU04 · slide 34 · Two legislative procedures

The ordinary procedure has been the usual one since the Treaty of Lisbon; which applies in a given case is determined by the legal basis, not by choice.

EU06 · slide 14 · Where does primacy come from?

The Constitutional Treaty would have written it in; after its failure the Lisbon Treaty relegated it to Declaration 17, which merely recalls the case law.

EU06 · slide 14 · Where does primacy come from?

Primacy has no express Treaty basis; it was developed by the Court of Justice in *Costa v ENEL* and is only recalled in Declaration 17 annexed to the Lisbon Treaty.

EU10 · slide 25 · The current stage

The Charter of Fundamental Rights, drawn up by a Convention in 2000 during the constitutionalisation process, became a binding part of PRIMARY LAW with the Treaty of Lisbon in 2009.

12. Comitology Regulation 182/2011

No specific article

EU05 · slide 37 · Comitology: how implementing acts are adopted

The detail is in REGULATION 182/2011, which offers two procedures: the ADVISORY procedure and the EXAMINATION procedure.

EU05 · slide 37 · Comitology: how implementing acts are adopted

The rules are in REGULATION 182/2011.

EU05 · slide 37 · Comitology: how implementing acts are adopted

Which two comitology procedures does Regulation 182/2011 provide, and what is the difference between them?

EU05 · slide 39 · Comitology 2: the examination procedure and its four outcomes

OPTION 3 — NO OPINION delivered (the committee fails to reach a qualified majority either way): the Commission MAY ADOPT the draft anyway, WITH THE EXCEPTION of the cases specified in the comitology regulation.

EU05 · slide 39 · Comitology 2: the examination procedure and its four outcomes

NO OPINION → the Commission MAY ADOPT the draft, except in the cases specified in the comitology regulation.
4.

EU05 · slide 39 · Comitology 2: the examination procedure and its four outcomes

YES as a rule — where NO OPINION is delivered the Commission MAY ADOPT the draft, with the exception of the cases specified in the comitology regulation.

13. GDPR

No specific article

EU08 · slide 37 · Where the EU has its own procedural rules
GDPR, and the Antitrust Damages Directive 2014/104/EU.

EU08 · slide 37 · Where the EU has its own procedural rules
GDPR Arts 77 ff., the Antitrust Damages Directive) — they take precedence.

14. Antitrust Damages Directive

Art. 77

EU08 · slide 37 · Where the EU has its own procedural rules
GDPR Arts 77 ff., the Antitrust Damages Directive) — they take precedence.

No specific article

EU08 · slide 37 · Where the EU has its own procedural rules
GDPR, and the Antitrust Damages Directive 2014/104/EU.

EU08 · slide 58 · Courage and Manfredi

The same effet utile reasoning as Francovich, now producing a private damages claim between individuals — and later codified in the Antitrust Damages Directive.

15. Digital Markets Act

No specific article

EU08 · slide 30 · Where the Union enforces directly

Competition law and the Digital Markets Act; foreign trade law; Union funds; research and science funding; and cross-sectional tasks such as human resources, budget and internal organisation.

16. European Convention on Human Rights (ECHR)

Article texts: [echr.coe.int](https://www.echr.coe.int), text of the Convention

Art. 6(1)

1. In the determination of his civil rights and obligations or of any criminal charge against him, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law. Judgment shall be pronounced publicly but the press and public may be excluded from all or part of the trial in the interests of morals, public order or national security in a democratic society, where the interests of juveniles or the protection of the private life of the parties so require, or to the extent strictly necessary in the opinion of the court in special circumstances where publicity would prejudice the interests of justice.

EU09 · slide 26 · What follows from breaching the duty

And the ECHR: Article 6(1) — an arbitrary refusal to refer can breach the right to a fair trial.

EU09 · slide 26 · What follows from breaching the duty

Under the ECHR, a possible violation of Article 6(1).

No specific article

EU02 · slide 11 · Three councils, one trap

The COUNCIL OF EUROPE: not an EU body at all — a separate international organization of 46 states in Strasbourg, home of the European Convention on Human Rights and the European Court of Human Rights.

EU02 · slide 11 · Three councils, one trap

Council of Europe: not an EU body at all — a separate organization in Strasbourg, home of the ECHR and the ECtHR.

EU10 · slide 23 · The intermediate stage

Still no codified instrument, but in *Internationale Handelsgesellschaft* (11/70) the Court recognised fundamental rights as GENERAL PRINCIPLES of EU law, drawn from the constitutional traditions common to the member states and from the ECHR.

EU10 · slide 24 · Can the EU accede to the ECHR?

The main objection is the AUTONOMY of EU law: accession would let the ECHR and the case law of the Strasbourg Court take precedence over both EU primary law and the Court of Justice's own jurisprudence.

EU10 · slide 24 · Can the EU accede to the ECHR?

Why has the Court of Justice blocked EU accession to the ECHR?

EU10 · slide 24 · Can the EU accede to the ECHR?

To protect the autonomy of EU law: accession would subject EU primary law and the Court's own case law to the ECHR and the Strasbourg Court (Opinions 2/94 and 2/13), even though Article 6(2) TEU makes accession an objective.

EU10 · slide 26 · Two bases today

GENERAL PRINCIPLES of Union law under Article 6(3) TEU, drawn from the ECHR and the constitutional traditions of the member states.

EU10 · slide 26 · Two bases today

The Charter of Fundamental Rights, which is primary law since Lisbon, and the general principles of Union law under Article 6(3) TEU, drawn from the ECHR and the member states' common constitutional traditions.

EU10 · slide 27 · Three generations of rights in the Charter

The Charter's inclusion of the second and third generations is what distinguishes it from the ECHR.

17. Directive 1999/70

No specific article

EU08 · slide 18 · A newer route: the Charter

Case C-715/20, KL: the right to an effective remedy in Article 47 of the Charter may be invoked IN CONJUNCTION WITH Directive 1999/70 in a dispute between private individuals.

18. Directive 2010/123

No specific article

EU01 · slide 20 · A real case exercise

A fictitious Directive 2010/123 requires laboratory research scientists to be paid at least three times the normal hourly rate for weekend shifts, with an implementation deadline of 31 December 2012.

19. Directive 2014/104

No specific article

EU08 · slide 37 · Where the EU has its own procedural rules

GDPR, and the Antitrust Damages Directive 2014/104/EU.